

MEMORANDUM OF AGREEMENT
Between
SOUTHEASTERN PENNSYLVANIA TRANSPORTATION AUTHORITY
And
TRANSPORT WORKERS UNION LOCAL 234,
CITY TRANSIT DIVISION

October 28, 2021

The Southeastern Pennsylvania Transportation Authority (SEPTA) and the Transport Workers Local Union No. 234 (Union or Local 234) have reached the following tentative agreement, pending ratification by the respective parties, for a collective bargaining agreement to succeed the bargaining agreement covering the City Transit Division that will expire on October 31, 2021, at midnight.

1. **Term of Agreement (Section 1501).** Two (2) years commencing November 1, 2021, and ending October 31, 2023, at 12:00 midnight. Unless specifically noted herein, all provisions are effective upon ratification of the new agreement by both parties.

2. **Rates of Pay (Sections 408, 413, 427).** Sections 408, 413 and 427 will be amended to reflect the following wage increases:

December 12, 2021: All employees receive a **3%** general wage increase

December 11, 2022: All employees receive a **3%** general wage increase

3. **Pandemic Attendance Bonus**

In recognition and appreciation of service throughout the challenges of the Covid-19 Pandemic, employees on the payroll upon ratification of an agreement between the parties will receive payment of \$1.00 for each hour worked between March 15, 2020 through March 15, 2021, up to a maximum of \$2,200.00.

Active employees who reported for work on-site and did not telework or work remotely during the period between March 15, 2020 through March 15, 2021 will be eligible for this bonus.

For the purposes of this Attendance Bonus, up to 80 hours of FFCRA Emergency Paid Sick Leave (EPSL), and up to 80 hours of SEPTA "80" time (which was granted in the event an employee had depleted their 80 hours of FFCRA EPSL, subsequently tested positive for Covid-19 or was directed to quarantine by SEPTA management due to close contact with a coworker in the SEPTA workplace) and used vacation entitlement (not sold back) will be considered "hours worked".

No other paid or unpaid leave will be considered "hours worked" for the purposes of this Attendance Bonus.

4. **Increase Maintenance Custodian and Maintenance Custodian Driver Base Pay**

Increase the "100%" progression pay rate for MCs and MCDs listed on the Wage Rate Manual by \$0.65 per hour. The other steps in progression (76%, 85%, +\$0.30, +\$0.80, +\$1.70) will remain unchanged but will be based on the increased "100%" rate.

This increase will be incorporated into the base rate of these positions prior to calculating the 3% wage increase on December 12, 2021 and will become effective on that date

5. **Holiday Allowance (Section 442)**

Juneteenth will be added as a floating holiday under Section 442 (a) and will be subject to the same provisions of the Labor Agreement as Good Friday and Dr. Martin Luther King's Birthday.

6. **Paid Pregnancy Disability Leave and Parental Leave (Article V)**

Eligible employees will be entitled to up to four (4) weeks of pregnancy disability leave and up two (2) weeks of Parental leave in accordance with the attached side letter dated October 25, 2021. The entitlement to this leave shall be effective January 1, 2022.

7. **Appendix I Attendance Points System**

I.A MISSES (Transportation)

Replace (a) with:

Any miss less than four (4) hours	2 points
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I.B LATENESSES (Maintenance)

Replace (a) with:

Lateness with a call-in before the start of the shift	2 points
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III Emergency at Home (EAH) and Sickness at Home (SAH) Days

Replace with:

Employees hired on or after November 15, 2021 will be entitled to two (2) EAH/SAH days requiring no validation within any consecutive twelve (12) month period in their first two (2) years of service. All subsequent turn-ins for EAH or SAH will be assessed two (2) points and will be considered in establishing patterns. At the start of their third year of service they will be

entitled to three (3) EAH/SAH days requiring no validation within any consecutive twelve (12) month period. All subsequent turn-ins for EAH or SAH will be assessed two (2) points and will be considered in establishing patterns.

Upon ratification of this agreement by the parties, all incumbent employees hired prior to November 15, 2021, will be entitled to three (3) EAH/SAH days requiring no validation within any consecutive twelve (12) month period. All subsequent turn-ins for EAH or SAH will be assessed two (2) points and will be considered in establishing patterns.

8. **Job Evaluation and Job Classification Reorganization Program (Section 428)**

Amend second paragraph of 428(j) to:

Employees who fail to cancel scheduled appointments for written testing will be required to wait 30 days to take written tests.

9. **Bus and Rail Maintenance Vacation Quotas:**

See Letter of Understanding re: Bus and Rail vacation quotas.

10. **Housekeeping**

Add the following to Section 601: Vacation weeks shall be picked by job classification.

11. **Other Terms and Conditions.** All other terms and conditions set forth in the Agreement are unchanged. All other proposals and offers of the parties during the negotiations are withdrawn without precedent or prejudice to the rights of either party.

And Now, this 28th Day of October, 2021:

FOR SEPTA:



Chad Cuneo
Chief Labor Relations Officer



Michael Feinberg
Manager, Labor Advocacy

Susan Sanderson
Manager, Labor Relations

Bud Scott
Manager, Labor Relations

FOR TWU LOCAL 234:



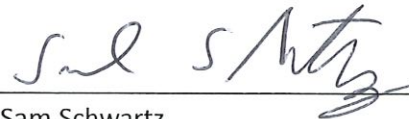
Willie Brown
President



Brian Pollitt
Executive Vice President



Bruce Bodner
General Counsel



Sam Schwartz
Assistant General Counsel

Joseph Coccio
Secretary Treasurer

October 25, 2021

Mr. Brian Pollitt
Executive Vice President
Transport Workers Union, Local 234
500 N. 2nd Street
Philadelphia, PA 19123

Re: Parental Leave and Pregnancy Disability Leave

Dear Mr. Pollitt,

This letter will confirm our understanding regarding Parental Leave and Pregnancy Disability Leave.

Parental Leave

TWU-234 members with at least twelve months of paid service shall be granted up to two (2) weeks of paid parental leave after the birth of a child or children, or upon taking custody of an adoptive child(ren) under the age of 12. The birth or adoption of multiple children does not increase the length of leave granted.

For the purposes of this policy, a "parent" is defined as an employee who is the birth parent, a biological parent of the child being born, a spouse of a birth parent, or adoptive parent of a minor child. For the purposes of this definition an adoptive minor child must be under the age of 12 upon commencement of paid leave.

The parental leave will be paid at the employee's hourly rate for 40 hours per week.

Parental leave may be used in two continuous weeks or in two one-week intervals, for a total of two weeks, during the six-month period immediately following the birth or the arrival of the adoptive child(ren). Other than the ability to utilize this leave on a weekly basis, this leave may not be utilized intermittently.

An employee may receive only one two (2) weeks of parental leave for the care of any given child. An employee may not use more than two weeks of paid parental leave in any rolling twelve-month period measured forward from the date the parental leave commences.

Any parental leave taken under this provision shall be concurrent with, and not in addition to, any leave allowable under the Family Medical Leave Act (FMLA) or any other leave granted under any applicable and mandated Federal, State or Local law currently in existence or which may come into existence in the future. To the extent such a law provides greater benefits than those allowed in this policy, this policy will be amended to comply with the law.

Any paid parental leave not used by the employee before the end of the six-month period to which it relates shall be forfeited and may not be accumulated for any subsequent use.

Parents of a newborn(s) or adopted child(ren) who both are employed by SEPTA will each be entitled to a full allotment of parental leave, if eligible, in accordance with this provision.

Holidays that occur during parental leave do not extend the leave period nor are they permitted to be banked for later use.

Employees must provide a request for Parental/Pregnancy Disability Leave Form (see attached), along with written verification from their medical provider, adoption agency, or attorney (in the case of private adoption). All written notices and verifications must be routed to the Absence Management Program Manager for proper processing of benefits. Employees must acquire appropriate authorization, in writing, from SEPTA, prior to beginning their leave.

Pregnancy Disability Leave

Additionally, TWU-234 members with at least twelve months of paid service who are pregnant and experience a disability due to the pregnancy or the birth of a child which makes the employee unable to work will be granted up to four (4) weeks of paid pregnancy disability leave paid at their hourly rate for 40 hours per week. The four (4) weeks can be taken continuously or in weekly intervals totaling four (4) weeks. Other than the ability to utilize this leave on a weekly basis, this leave may not be used intermittently.

Any paid pregnancy disability leave taken under this provision shall be concurrent with, not in addition to, any sick leave and leave allowable under the Family Medical Leave Act (FMLA) or any leave granted under any other applicable and mandated Federal, State or Local law currently in existence or which may come into existence in the future. To the extent such a law provides greater benefits than those allowed in this policy, this policy will be amended to comply with the law.

Holidays that occur during pregnancy disability leave do not extend the leave period nor are they permitted to be banked for later use.

Employees must provide a request for Parental/Pregnancy Disability Leave Form (see attached), along with written verification from their medical provider. All written notices and verifications must be routed to the Absence Management Program Manager for proper processing of benefits. Employees must acquire appropriate authorization, in writing, from SEPTA, prior to beginning their leave.

An employee may receive only four (4) weeks of pregnancy disability leave for the care of any given child. An employee may not use more than four weeks of pregnancy disability leave in

any rolling twelve-month period measured forward from the date the pregnancy disability leave commences.

Implementation of these provisions voids and supersedes all prior side letters on this issue, including, but not limited to, the undated Tauss letter regarding Maternity Leave and the Thomas letter dated September 9, 1987 regarding the Tauss letter and any and all arbitration award(s) concerning maternity leave, including the Lawanda Williams award #14-390-01138-03-EVH dated November 7, 2003.

An employee will not receive any attendance points for taking leave in compliance with the Parental Leave or Pregnancy Disability Leave policy.

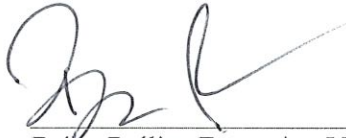
The effective date of this Parental Leave and Pregnancy Disability Leave will be January 1, 2022.

Respectfully,



Chad Cuneo
Chief Labor Relations Officer

AGREED:



Brian Pollitt, Executive Vice President, TWU Local 234

Date: 10^28-21

Cc: LR Staff

October 28, 2021

Mr. Brian Pollitt
Executive Vice President
Transport Workers Union, Local 234
500 N. 2nd Street
Philadelphia, PA 19123

Re: Rail and Bus Maintenance Vacation Pilot Program

Dear Mr. Pollitt:

This letter confirms our understanding regarding the pilot program expanding the number of vacation weeks available for picking between Independence Day and Labor Day during the term of this agreement.

1. Each Rail and Bus Maintenance location will apply a classification-based vacation quota for vacation weeks using the actual headcount in each job classification.

Quotas for vacation weeks during the summer months (Independence Day week through Labor Day week) will be based on 10% of the number of employees in each classification, rounded up as follows:

0 - 11	1
12 - 21	2
22 - 30	3
31 - 39	4
40 and over	5

2. The quota for vacation weeks during the remainder of the calendar year will be based on the following formula, 10% of the number of employees in each classification rounded up, as follows:

0 - 14	1
15 - 24	2
25 - 34	3

35 - 44 4

45 and over 5

The picking for vacation days shall continue to be applied under the current procedure utilized by rail and bus locations respectively.

The "remainder of the year" vacation quota rounding method prescribed in paragraph "2" of this agreement will apply to Berridge shop year round. The "summer months" vacation quota rounding method prescribed in paragraph "1" will not apply to Berridge shop at any time.

This pilot program sunsets on October 31, 2023.

Respectfully,



Chad Cuneo

Chief Labor Relations Officer

AGREED:



Brian Pollitt, Executive Vice President, TWU Local 234

Date: 10-1-21

October 28, 2021

Mr. Brian Pollitt
Executive Vice President
Transport Workers Union, Local 234
500 N. 2nd Street
Philadelphia, PA 19123

Re: Autonomous Vehicles

Dear Mr. Pollitt:

This letter will confirm our understanding regarding Autonomous Vehicles during the term of this agreement.

In the event the Authority exercises its management prerogative to implement autonomous driverless vehicles during the term of this agreement, the Authority will, upon request by the union, engage in negotiations over the impact of that decision to the extent that such bargaining is required by the Pennsylvania Public Employee Relations Act ("PERA"). Nothing in this agreement is intended to change or alter the parties' obligations under the contract, PERA or any other relevant law.

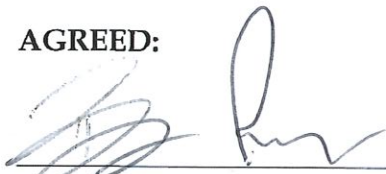
This side letter will sunset and no longer be part of this agreement after October 31, 2023.

Respectfully,



Chad Cuneo
Chief Labor Relations Officer

AGREED:



Brian Pollitt, Executive Vice President, TWU Local 234

Date: 10-29-21

October 28, 2021

Mr. Brian Pollitt
Executive Vice President
Transport Workers Union, Local 234
500 N. 2nd Street
Philadelphia, PA 19123

Re: PERA C-20-188E and PERA C-21-27-E

Dear Mr. Pollitt:

This letter confirms our understanding regarding PERA C-20-188E and PERA C-21-27-E.

PERA C-21-27-E will be withdrawn with prejudice.

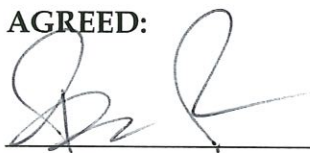
PERA C-20-188E will be settled under the following terms:

Rescind all attendance points that were issued for call offs by an employee due to a COVID-19 quarantine or to care for a child as a result of a COVID-19 related school closing, including any and all discipline issued based in whole or in part on such attendance points. For ease of administration, the Union is willing to agree to deal with this on a case by case basis as the issue arises in attendance related discipline cases.

Respectfully,


Chad Cuneo
Chief Labor Relations Officer

AGREED:



Brian Pollitt, Executive Vice President, TWU Local 234

Date: 10.28.21